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_____, 2024)

ORDINANCE NO. _____

AN ORDINANCE AMENDING THE TULSA ZONING CODE, TITLE 42, TULSA REVISED ORDINANCES (HEREINAFTER "TITLE 42") BY AMENDING CHAPTER 20, "OVERLAY DISTRICTS", SECTION 20.050, "RDO, RIVER DESIGN OVERLAYS", SUBSECTION 20.050-A, "GENERAL", AT PARAGRAPH 4, "EXEMPTIONS" AND PARAGRAPH 7, "MODIFICATIONS TO RDO REGULATIONS", RELATING TO EXEMPTIONS FROM RDO REGULATIONS FOR MPD-ZONED TRACTS OF LAND OF 20 ACRES OR MORE; AMENDING CHAPTER 35, "BUILDING TYPES AND USE CATEGORIES", SECTION 35.070, "INDUSTRIAL USE CATEGORY", AT SUBSECTION 35.070-A, "LOW-IMPACT MANUFACTURING AND INDUSTRY" BY ADDING DATA CENTERS AS A LOW-IMPACT MANUFACTURING AND INDUSTRY USE; AMENDING CHAPTER 40, "SUPPLEMENTAL USE AND BUILDING REGULATIONS", SECTION 40.420, "WIRELESS COMMUNICATION FACILITIES", AT SUBSECTION 40.420-E, "GENERAL REQUIREMENTS", BY ALLOWING COMMUNICATION TOWERS OTHER THAN OF A MONOPOLE DESIGN IN THE IL DISTRICT, AND ADDING REQUIREMENTS FOR TOWERS ACCESSORY TO DATA CENTER USE; AND AMENDING CHAPTER 55, "PARKING", BY AMENDING SECTION 55.050, "PARKING EXEMPTIONS AND CREDITS" BY ESTABLISHING PARKING REQUIREMENTS FOR DATA CENTERS; PROVIDING FOR SEVERABILITY; AND REPEALING ALL ORDINANCES OR PARTS OF ORDINANCES IN CONFLICT HEREWITH.

BE IT ORDAINED BY THE CITY OF TULSA:

Section 1. *That Title 42, Chapter 20, "Overlay Districts", Section 20.050, "RDO, River Design Overlays", Subsection 20.050-A, "General", at paragraph numbered 4, "Exemptions", be and the same is hereby amended to include new subparagraph "g", which shall recite as follows:*

- "g. MPD-zoned properties with a contiguous area of 20 acres or more are exempt from compliance with all of the RDO regulations of this section (Section 20.050), provided that MPD development plans and site plans for such properties must be consistent with the purpose and intent of the RDO district, as stated in Section 20.050-A.1."

Section 2. *That Title 42, Chapter 20, "Overlay Districts", Section 20.050, "RDO, River Design Overlays", Subsection 20.050-A, "General", paragraph numbered 7, "Modifications to RDO Regulations", at subparagraph "d", be and the same is hereby amended, which shall recite as follows:*

- “d. The regulations of an RDO district may not be varied or modified through approval of or amendment of a Master Planned Development (MPD) district that applies to property with a contiguous area of less than 20 acres. MPD-zoned properties with a contiguous area of 20 acres or more are exempt from the RDO regulations of this section (Section 20.050), as stated in Section 20.050-A.4.g.”

Section 3. That Title 42, Chapter 35, “Building Types and Use Categories”, Section 35.070, “Industrial Use Category”, at Subsection 35.070-A, “Low-impact Manufacturing and Industry” be and the same is hereby amended by adding new subparagraph 4, and which shall recite as follows:

“35.070-A Low-impact Manufacturing and Industry

Manufacturing and industrial uses that do not, as part of their normal operations, generate noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration. Typical examples of low-impact manufacturing and industrial uses include: commercial laundries and linen supply services, apparel manufacturing, bakery products manufacturing, production of medical marijuana products, such as edibles and pre-rolls, using medical marijuana components processed elsewhere, bottling plants, ice manufacturing, mattress manufacturing and assembly, microbreweries, micro distilleries, data centers, coffee roasting with a maximum roasting capacity of 45 kilograms per batch, musical instrument and parts manufacturing, newspaper printing and binderies.

1. Microbrewery

An establishment in which beer or malt beverages are made on the premises and then sold or distributed, and which produces less than 15,000 barrels (465,000 gallons) of beer and malt beverages per calendar year. Where allowed by law, microbreweries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.

2. Micro Distillery

A distillery producing distilled spirits in total quantity of no more than 40,000 proof gallons per calendar year. Where allowed by law, micro distilleries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.

3. Low-impact Medical Marijuana Processor

A medical marijuana processor issued a nonhazardous processor license by the Oklahoma Medical Marijuana Authority.

4. Data Center

A facility or facilities used to house, and in which are operated, maintained and replaced from time to time, computer systems and associated components, including but not limited to telecommunications and storage systems, cooling systems, power

supplies and systems for managing electrical and mechanical performance, and equipment used for the transformation, transmission, distribution and management of electricity for on-site uses, internet-related equipment, data communications connections, private communication towers, environmental controls and security devices.”

Section 4. *That Title 42, Chapter 40, “Supplemental Use and Building Regulations”, Section 40.420, “Wireless Communication Facilities”, at Subsection 40.420-E, “General Requirements”, be and the same is hereby amended by amending subparagraph “b”, re-ordering existing subparagraph “2c” as subparagraph “2d”, and adding new subparagraph “c”, which numerical 2 of Subsection 40.420-E shall recite as follows:*

- “2. Towers and antennas are subject to all of the following requirements:
- a. Towers and antennas must be designed to blend into the surrounding environment through the use of color, galvanizing, or camouflaging architectural treatment, except in instances where the color is dictated by federal or state authorities, such as the Federal Aviation Administration.
 - b. Except in IL, IM and IH zoning districts, communication towers must be of a monopole design unless the board of adjustment approves, by special exception, an alternative design that they determine would better blend into the surrounding environment or that the required antennas cannot be supported by a monopole.
 - c. Towers that are accessory to a data center use shall not exceed 100 feet in height and shall not be located within 200 feet of the property boundary, unless the board of adjustment approves, by special exception, such additional height and/or location.
 - d. If an antenna is installed on a structure other than a tower, the antenna and supporting electrical and mechanical equipment must be of a color that closely matches or complements the color of the supporting structure, so as to make the antenna and related equipment as visually unobtrusive as possible.”

Section 5. *That Title 42, Chapter 55, “Parking”, Section 55.050, “Parking Exemptions and Credits”, be and the same is hereby amended by adding new Subsection 55.050-M, “Data Centers” which shall recite as follows:*

“55.050-M Data Centers

Minimum parking for data centers shall be provided as follows:

- 1. Office area: 1 space per 1,000 square feet; and

2. Warehouse/storage/technology equipment area: 0.15 space per 1,000 square feet.”

Section 6. *That if any section, sentence, clause or phrase of this ordinance or any part thereof is for any reason found to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remainder of this ordinance or any part thereof.*

Section 7. *That all ordinances or parts of ordinances in conflict herewith be and the same are expressly repealed.*

ADOPTED by the Council: _____, 2024.

Chair of the Council

OFFICE OF THE MAYOR

Received by the Mayor: _____, at _____.
Date Time

G.T. Bynum, Mayor

By: _____
Secretary

APPROVED by the Mayor of the City of Tulsa, Oklahoma: _____ 2024,
Date
at _____.
Time

Mayor

(Seal)

ATTEST:

City Clerk



APPROVED:

City Attorney

